

**UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE DIRECTOR OF THE
UNITED STATES PATENT AND TRADEMARK OFFICE**

In the Matter of	)	
	)	
Michael L. Bartholomew,	)	Proceeding No. D2026-17
	)	
Respondent	)	
	)	

FINAL ORDER

The Director of the Office of Enrollment and Discipline (“OED Director”) for the United States Patent and Trademark Office (“USPTO” or “Office”) and Mr. Michael L. Bartholomew (“Respondent”) have submitted a Proposed Settlement Agreement (“Agreement”) to the Under Secretary of Commerce for Intellectual Property and Director of the United States Patent and Trademark Office (“USPTO Director”) for approval.

The Agreement, which resolves all disciplinary action by the USPTO arising from the stipulated facts set forth below, is hereby approved. This Final Order sets forth the parties’ stipulated facts, legal conclusions, and sanctions.

Jurisdiction

1. At all times relevant hereto, Respondent of Highland, Utah, has been an attorney admitted to practice in Utah (Bar No. 17169) and Texas (Bar No. 24073890) in good standing. On April 2, 2007, Respondent was registered as an agent with the USPTO and assigned registration number 60,225. On August 10, 2011, Respondent’s status changed to registered attorney. Respondent is subject to the USPTO Rules of Professional Conduct, 37 C.F.R. § 11.101 *et seq.*
2. The USPTO Director has jurisdiction over this matter pursuant to 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26.

Legal Background

The U.S. Counsel Rule

3. Foreign-domiciled trademark applicants or registrants must be represented before the USPTO by an attorney who is licensed to practice law in the United States. *See* 37 C.F.R. § 2.11(a); *Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 Fed. Reg. 31498 (July 2, 2019) (“the U.S. Counsel Rule”).
4. A policy objective of the U.S. Counsel Rule is to instill greater confidence in the public that U.S. registrations issued to foreign applicants are not subject to invalidation for reasons such as improper signatures. *See* 84 Fed. Reg. 31507.

5. The U.S. Counsel Rule's requirement for U.S. licensed attorneys—who have ethical obligations to the USPTO and to their trademark clients—was intended to (a) increase compliance with U.S. trademark law and USPTO regulations; (b) improve the accuracy of trademark submissions to the USPTO; and (c) safeguard the integrity of the U.S. trademark register. *See* 84 Fed. Reg. 31498.

6. The USPTO has published ample information about the U.S. Counsel Rule. *See, e.g.*, the U.S. Counsel Rule; 37 C.F.R. § 2.11 (requirement for representation); Trademark Manual of Examining Procedure ("TMEP") § 601 ("Requirement for Representation Based on Domicile of Mark Owner").

USPTO.gov Account Agreement

7. At all relevant times, a USPTO.gov account was required for trademark documents to be electronically filed with the USPTO via the USPTO's electronic filing system.

8. Attorneys may have their own USPTO.gov account to use when representing trademark clients before the USPTO. Additionally, attorneys are permitted to sponsor USPTO.gov accounts for support staff directly employed or retained by the attorney, the attorney's law firm, or who work under the attorney's direct supervision. To obtain a USPTO.gov account, the account holder must agree to the terms of the USPTO Trademark Verified USPTO.gov Account Agreement ("the Trademark Account Agreement").

9. The Trademark Account Agreement sets forth the responsibilities of USPTO.gov account holders. Each of these responsibilities are intended to ensure that the account is not used by other persons or for improper purposes. The Trademark Account Agreement requires a trademark practitioner who is granted a USPTO.gov account to agree to, *inter alia*, not to permit others to use the trademark verified USPTO.gov account login credentials issued to the person and to take reasonable steps to prevent others from learning such account login information. The account holder also agrees to promptly notify the USPTO if the holder becomes aware that his or her login credentials have been used by others. The account holder agrees that the trademark verified USPTO.gov account will not be used in connection with the unauthorized practice of law.

10. The Trademark Account Agreement also states that an individual person may only use one trademark verified USPTO.gov account and will not request additional accounts.

11. An attorney may sponsor a separate USPTO.gov account for each of their non-practitioner support staff who are directly employed or retained by them, their company, or their law firm and who work under their direct supervision. The Trademark Account Agreement sets forth additional responsibilities for attorneys who sponsor accounts for other persons. The Trademark Account Agreement requires a trademark attorney who sponsors a USPTO.gov account to agree to, *inter alia*, the following provisions:

As a sponsoring attorney, I understand that I am personally, professionally, and ethically responsible for the conduct of each attorney support staff when using a sponsored USPTO.gov account.

I will take reasonable steps to ensure that each sponsored attorney support staff is familiar with the terms of this Agreement and with the relevant laws, regulations, and policies of the USPTO with respect to the duties to which their access pertains

I will take reasonable steps to ensure that each sponsored attorney support staff's access and use of USPTO systems is consistent with the tasks assigned that individual. Such reasonable steps include prompt removal of sponsorship when appropriate, including where the individual is no longer under my employ and/or supervision.

I will immediately remove sponsorship of the USPTO.gov account for any attorney support staff whom I have reason to believe has abused or misused any USPTO system, including but not limited to knowingly submitting false statements or signatures, and I will immediately report the misuse or abuse to the USPTO.

12. USPTO.gov account holders have been and continue to be reminded of their responsibilities. Specifically, each USPTO.gov account user, upon every login to their USPTO.gov account, must certify their acceptance of the USPTO's Terms of Use.

USPTO Trademark Signature Rules

13. The USPTO trademark signature rules require that all signatures be personally entered by the named signatory and that a person electronically signing a document through the USPTO's electronic filing system must personally enter any combination of letters, numbers, spaces, and/or punctuation marks that he or she has adopted as a signature, placed between two forward slash ("/") symbols in the signature block on the electronic submission. *See* 37 C.F.R. § 2.193(a) and (c), and 37 C.F.R. § 11.18(a).

14. The USPTO publishes online and regularly updates the TMEP (*see* tmept.uspto.gov/RDMS/TMEP/current). The TMEP provides trademark practitioners with, among other things, a reference work on the practices and procedures relative to prosecution of applications to register marks in the USPTO.

15. Unequivocal direction from the USPTO identified the proscription against any person other than the named signatory signing electronically trademark documents filed with the USPTO:

All documents must be properly signed, 37 C.F.R. §§ 2.193(a), 11.18(a). The person(s) identified as the signatory must personally sign the printed form or personally enter the signatory's electronic signature, either directly on the trademark electronic filing system's form or in the emailed form. 37 C.F.R. § 2.193(a), (d).

A person may not delegate their authority to sign, and no person may sign or enter the name of another. *See In re Stelcore Mgmt. Servs., LLC*, 2025 Commr. Pat. LEXIS 3, at *5 (Dir USPTO 2025) (sanctions); *In re Zhang*, 2021 Commr. Pat. LEXIS 2, at *10, *13 (Dir USPTO 2021) (sanctions); *In re Dermahose Inc.*, Ser. No. 76585901, 2007 TTAB LEXIS 25, at *9 (2007); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *6 (Comm'r Pats. 1990); see TMEP §611.01(b) for additional information regarding improperly executed signatures and its effect on the validity of an application or registration.

Just as signing the name of another person on paper does not serve as the signature of the person whose name is written, typing the electronic signature of another person is not a valid signature by that person.

Similarly, another person may not use document-signing software to create or generate the electronic signature of the named signatory.

TMEP § 611.01(c) (November 2025) (paragraph spacing added).¹

16. The USPTO trademark signature rules are substantive requirements, not mere “technical” ones. *See In re Stelcore Management Services LLC*, 2025 Comm'r. Pat. at *3 (Final Order for Sanctions June 13, 2025). A signature that does not meet the “personally signed” or “personally entered” requirements, *see* 37 C.F.R. §§ 2.193(a), (f), 11.18(a), “may jeopardize the validity of [an] application or registration.” 37 C.F.R. § 2.193(f).

17. A trademark submission that is signed by a person other than the named signatory is improperly executed and cannot be relied upon to support registration. *See In re Stelcore Mgmt. Servs., LLC*, *supra* at *5; *In re Zhang*, *supra* at *10; *Ex parte Hipkins*, Appeal No. 90-2250, 1991 Pat. App. LEXIS 14, at *10-13 (BPAI 1991); *In re Cowan*, *supra* at *5-6.

18. Trademark applications contain declarations that are signed under penalty of perjury, with false statements being subject to punishment under 18 U.S.C. § 1001. Signatories to declarations in trademark applications make specific representations regarding applicants’ use of the mark in commerce and/or their intent to use the mark in commerce. The USPTO relies on such declarations signed under penalty of perjury in trademark applications in the course of examining trademark applications and issuing registrations:

Submitting a document that includes false, misleading, fictitious, or fraudulent information or representations violates 37 C.F.R. § 11.18(b)(1). This includes, for example, false or misleading domicile information, attorney information, signatory information (*e.g.*, where the named signatory did not personally enter his or her signature on the document), applicant information, or claims of use (or intent to use). Submitting a document without undertaking a reasonable inquiry into the factual basis for the averments, without evidentiary support, in an effort to circumvent

¹ Previous versions of the TMEP, including this provision, were published in May 2025, November 2024, May 2024, November 2023, July 2022, July 2021, and October 2018 (with similar language).

USPTO Rules, or coupled with other rule or Terms of Use violations constitutes an improper purpose and violates 37 C.F.R. § 11.18(b)(2).

In re Stelcore Management Services, LLC, Final Order for Sanctions (USPTO June 13, 2025) at *6.

Certifications Required to Present Papers to the USPTO

19. A practitioner makes important certifications via 37 C.F.R. § 11.18 whenever presenting (e.g., by signing, filing, submitting, or later advocating) any trademark or patent paper to the USPTO. Specifically, the practitioner certifies that all statements made on his or her own knowledge are true, and that all statements based on the practitioner's information and belief are believed to be true. *See* 37 C.F.R. § 11.18(b)(1). The practitioner also certifies that:

[t]o the best of the party's knowledge, information and belief, *formed after an inquiry reasonable under the circumstances*, (i) [t]he paper is not being presented for any improper purpose, such as to harass someone or to cause unnecessary delay or needless increase in the cost of any proceeding before the Office; (ii) [t]he other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law; (iii) [t]he allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and (iv) [t]he denials of factual contentions are warranted on the evidence, or if specifically so identified, are reasonably based on a lack of information or belief.

37 C.F.R. § 11.18(b)(2) (emphasis added).²

20. Accordingly, a practitioner who presents any paper to the USPTO—including trademark filings—certifies that he or she has conducted an inquiry reasonable under the circumstances that supports the factual assertions set forth in the paper. *See* 37 C.F.R. § 11.18(b)(2)(iii).

21. Violations of § 11.18 may jeopardize the probative value of the filing, and any false or fraudulent statements are subject to criminal penalty under 18 U.S.C. § 1001. *See* 37 C.F.R. § 11.18(b)(1).

22. Any practitioner who violates the provisions of this section may also be subject to disciplinary action. *See* 37 C.F.R. § 11.18(d).

23. As the USPTO Director has noted:

Submitting a document that includes false, misleading, fictitious, or fraudulent information or representations violates 37 C.F.R. § 11.18(b)(1). This includes, for example, false or misleading domicile information, attorney information, signatory information (e.g., where the named signatory did not personally enter his or his signature on the document), applicant information, or claims of use (or intent to use). Submitting a document without undertaking a reasonable inquiry into the factual

² These certifications apply to trademark documents filed with the USPTO. *See* 37 C.F.R. § 2.193(f).

basis for the averments, without evidentiary support, in an effort to circumvent USPTO Rules, or coupled with other rule or Terms of Use violations constitutes an improper purpose and violates 37 C.F.R. § 11.18(b)(2).

In re Stelcore Management Services, LLC, supra, at *6.

Joint Stipulated Facts

24. Respondent was admitted to practice law in the state of Texas on November 5, 2010 (Bar No. 24073890) and the state of Utah on October 15, 2019 (Bar No. 17169).

25. Respondent was registered as a patent agent on April 2, 2007, and as a patent attorney on August 10, 2011 (Reg. No. 60,225).

26. At all times relevant, Respondent was associated with the law firm [REDACTED] of Salt Lake City, Utah, where he supervised two associate attorneys assisting him in his trademark practice.

27. While employed at [REDACTED], Respondent sponsored at least twenty (20) non-practitioner assistant accounts in connection with his trademark practice.

28. Respondent resigned from [REDACTED] in mid-January 2025. He is now the owner of the Bartholomew Law PC law firm and employs one part-time associate attorney.

29. From October 2019 through January 2025, Respondent was the attorney of record on over 10,000 trademark documents filed with the USPTO using Respondent's USPTO.gov account. The volume of Respondent's trademark practice increased substantially in 2023.

30. Many of the applicants for whom Respondent was the attorney of record were referrals from foreign-based intellectual property agencies. All of the clients these foreign agencies referred to Respondent were domiciled in China.

31. Those foreign agencies included Shenzhen Oneworld Technology Service Co., Ltd 深圳市一世界技术服务有限公司; Shenzhen Ma Shang Intellectual Property Co., Ltd 深圳马上知识产权有限公司; Libra 天秤座; Xiamen YISI Business Consulting Co., Ltd 厦门一思商务咨询有限公司; Intermark Patentes Y Marcas, S.L.P. Limited; Luo Hengcong 罗恒聪; Guangdong Litinso Intellectual Property Co., Ltd 广东利腾索知识产权有限公司; Shenzhen Arzou Enterprise Management Consulting Co., Ltd 深圳市阿尔祖企业管理咨询有限公司; Tallge (Guangzhou) Intellectual Property Co., Ltd 广州市泰尔格知识产权有限公司; and Shenzhen Haiwei International IP 深圳海威国际知识产权局, all of which were based in China or Hong Kong during the relevant time period.

32. OED uncovered at least seventy-five (75) trademark documents where (a) Respondent is identified as the attorney of record for the applicants, (b) Respondent is identified as the named

signatory on the documents, (c) someone other than Respondent entered his signature on the documents, and (d) the documents were filed via USPTO.gov accounts that Respondent sponsored for six of his non-practitioner assistants.

33. For each of these seventy-five (75) documents, the USPTO delivered the associated filing receipts—which included copies of the improperly signed documents—to an email address used by Respondent in his representation of trademark applicants. Each filing receipt includes language urging the recipient to read the filing receipt carefully.

34. Respondent acknowledges that he did not adequately supervise the non-practitioner assistants for whom he sponsored USPTO.gov filing accounts.

35. Respondent also acknowledges that, at times, his review of trademark documents for applicants referred to him by foreign agencies did not meet the required standards for trademark practice before the USPTO. Further, Respondent acknowledges that he did not adequately review, or failed to review, the filing receipts (and the documents accompanying the receipts) and the improperly signed trademark documents.

36. Respondent represents that he has never knowingly allowed any other person to enter his signature on any trademark document filed with the USPTO and that he was unaware of the improperly signed trademark documents until they were brought to his attention during OED's investigation.

37. Respondent acknowledges that his lack of diligence in reviewing filing receipts (and the documents accompanying the receipts) resulted in his failure to learn of the improperly signed trademark documents and/or the improper use of USPTO.gov accounts by persons he sponsored.

Additional Considerations

38. Respondent cooperated with OED's investigation by agreeing to an online interview with OED; by providing timely, candid, and non-evasive responses to requests for information; and by entering into tolling agreements to ensure the development of a full record.

39. Respondent has never been the subject of professional discipline by the USPTO, and he represents that he has not been subject to discipline by any court or any state bar.

40. Respondent represents that he has always endeavored to comply with the rules of practice before the USPTO as well as his ethical obligations.

41. Respondent represents that he has reduced the volume of his trademark practice and is no longer accepting new trademark applications from foreign-domiciled applicants.

42. Respondent has informed the Deputy Commissioner for Trademark Examination Policy of the improper signatures and provided an itemized list of the associated filings.

43. Respondent has notified each of the clients and foreign agencies impacted by the improper signatures.

44. On his own initiative, Respondent made changes to his trademark practice, including providing his non-practitioner assistants additional training regarding the USPTO trademark signature rules.

45. Respondent is contrite and now acknowledges and understands the following about the USPTO trademark signature rules:

- a. All documents must be properly signed. 37 C.F.R. §§ 2.193(a), 11.18(a);
- b. The person(s) identified as the signatory must personally sign the printed form or personally enter the signatory's electronic signature, either directly on the trademark electronic filing system's form or in the emailed form. 37 C.F.R. § 2.193(a), (d);
- c. A person may not delegate their authority to sign, and no person may sign or enter the name of another. See *In re Stelcore Mgmt. Servs., LLC*, 2025 Commr. Pat. LEXIS 3, at *5 (Dir USPTO 2025) (sanctions); *In re Zhang*, 2021 TTAB LEXIS 465, at *10, *13 (Dir US PTO 2021) (sanctions); *In re Dermahose Inc.*, Ser. No. 76585901, 2007 TTAB LEXIS 25, at *9 (2007); *In re Cowan*, Reg. No. 1225389, 1990 Commr. Pat. LEXIS 24, at *6 (Comm'r Pats. 1990);
- d. Just as signing the name of another person on paper does not serve as the signature of the person whose name is written, typing the electronic signature of another person is not a valid signature by that person; and
- e. Similarly, another person may not use document-signing software to create or generate the electronic signature of the named signatory.

46. Further, Respondent now acknowledges and understands the following:

- a. The USPTO trademark signature rule requiring the named signatory to enter his or her signature on a trademark document is a substantive rule, not a technical requirement;
- b. A failure of the named signatory to enter his or her signature on a trademark document presented to the USPTO—even without wrongful intent—is a misrepresentation under 37 C.F.R. § 11.804(c); and
- c. A failure of the named signatory to enter his or her signature on a trademark document filed with the USPTO—even without wrongful intent—potentially adversely affects trademark applicants' and trademark registrants' intellectual property rights as well as the integrity of the USPTO trademark registration process.

Joint Legal Conclusions

47. Respondent acknowledges that, based on the information contained in the Joint Stipulated Facts, above, his acts and omissions violated the following provisions of the USPTO Rules of Professional Conduct:

- a. 37 C.F.R. § 11.101 (failing to provide competent representation to a client) by, *inter alia*, (i) not taking reasonable steps to ensure that trademark documents have been signed in accordance with the USPTO trademark signature rules; (ii) not adequately monitoring, if monitoring at all, the activities (including the signing practices) of non-practitioner assistants for whom he had sponsored USPTO.gov accounts; and (iii) not adequately reviewing, or failing to review, filing receipts of improperly signed trademark documents;
- b. 37 C.F.R. § 11.103 (failing to act with reasonable diligence in representing a client) by, *inter alia*, (i) not taking reasonable steps to ensure that trademark documents have been signed in accordance with the USPTO trademark signature rules; (ii) not adequately monitoring, if monitoring at all, the activities (including the signing practices) of non-practitioner assistants for whom he had sponsored USPTO.gov accounts; and (iii) not adequately reviewing, or failing to review, filing receipts of improperly signed trademark documents;
- c. 37 C.F.R. § 11.503(a)-(c) (failing to fulfill responsibilities regarding non-practitioner assistants) by, *inter alia*, inadequately monitoring the acts and omissions of non-practitioner assistants for whom he sponsored USPTO.gov accounts, which resulted in the non-practitioner assistants violating USPTO trademark signature rules by entering Respondent's signature and attorney credentials on at least seventy-five trademark documents filed with the USPTO;
- d. 37 C.F.R. § 11.804(c) (engaging in conduct involving dishonesty, fraud, deceit, or misrepresentation) by, *inter alia*, presenting trademark documents to the USPTO that were improperly signed by non-practitioner assistants for whom he had sponsored USPTO.gov accounts, in violation of the USPTO trademark signature rules; and
- e. 37 C.F.R. § 11.804(d) (engaging in conduct prejudicial to the administration of justice) by undermining the integrity of the USPTO trademark registration process by, *inter alia*, (i) not taking reasonable steps to ensure that trademark documents were signed in accordance with the USPTO trademark signature rules before such documents were filed with the USPTO; (ii) inadequately monitoring the acts and omissions of non-practitioner assistants which resulted in non-practitioner assistants for whom he had sponsored USPTO.gov accounts violating the USPTO trademark signature rules by entering his signature and attorney credentials on trademark documents filed with the USPTO; (iii) making misrepresentations to the USPTO by presenting trademark documents that were improperly signed in violation of USPTO trademark signature rules; and (iv) not taking reasonable steps to verify that trademark documents had been signed in accordance with the USPTO trademark signature rules after receiving official USPTO correspondence (*i.e.*, filing receipts) that, upon review, reasonably would have alerted him that his signature and attorney credentials were being used without his knowledge or consent.

Agreed-Upon Sanction

48. Respondent freely and voluntarily agreed, and it hereby ORDERED that:

- a. Respondent is hereby publicly reprimanded;
- b. Respondent is hereby placed on probation commencing on the date of this Final Order and continuing for twelve (12) months from the date of the Final Order;
- c. (1) if the OED Director is of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with any provision of the Agreement, this Final Order, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

- (A) issue to Respondent an Order to Show Cause why the USPTO Director should not enter an order immediately suspending Respondent for up to six (6) months for the violations set forth in the Joint Legal Conclusions, above;
- (B) send the Order to Show Cause to Respondent at the last address of record Respondent furnished to the OED Director pursuant to subparagraph (g), below; and
- (C) grant Respondent fifteen (15) days to respond to the Order to Show Cause; and

(2) in the event that after the 15-day period for response and consideration of the response, if any, received from Respondent, the OED Director continues to be of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with the Agreement, the Final Order, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

- (A) deliver to the USPTO Director: (i) the Order to Show Cause; (ii) Respondent's response to the Order to Show Cause, if any, and (iii) argument and evidence supporting the OED Director's position;
- (B) request that the USPTO Director enter an order immediately suspending Respondent for up to six (6) months for the violations set forth in the Joint Legal Conclusions above; and
- (C) send the documents delivered to the USPTO Director to Respondent at the last address of record Respondent furnished to the OED Director pursuant to subparagraph (g), below;

d. Nothing herein shall prevent the OED Director from seeking discrete discipline for any misconduct that formed the basis for an Order to Show Cause issued pursuant to the preceding subparagraph;

e. In the event Respondent seeks a review of any action taken pursuant to subparagraph (c), above, —including action by the USPTO Director suspending Respondent for up to six (6) months— such review shall not operate to postpone or otherwise hold in abeyance the suspension;

f. As a condition of probation, Respondent shall notify the OED Director in writing within twenty-one (21) days of the date of the Final Order of a postal address, an email address, and a telephone number to be used by the OED Director for purposes of corresponding and communicating with Respondent regarding subparagraph (c), above;

g. As a condition of probation, Respondent shall notify the OED Director in writing of any change in the postal address, the email address, and the telephone number to be used by the OED Director for purposes of corresponding and communicating with Respondent regarding subparagraph (c), above, within thirty (30) days of the date of any such change;

h. As a condition of his probation, Respondent shall, at least on a bi-weekly basis, (1) search the USPTO's online trademark search system (currently located at <https://tmsearch.uspto.gov/search/search-information>) for trademark applications identifying him as the attorney of record, using the search phrase format AT: firstname AND AT: lastname AND FD: [YYYYMMDD TO YYYYMMDD]; and (2) promptly inform in writing the USPTO Office of Trademark Examination Policy of each trademark document identifying his as the attorney of record that was filed without his knowledge or consent;

i. As a condition of his probation, Respondent shall, at least every two months, submit a written report to the OED Director (1) stating he has completed the bi-weekly searches of the USPTO's online trademark search system database and (2) either (A) stating that he identified no applications or other trademark filing in which he was named as the attorney of record, or (B) providing copies of correspondence sent to the USPTO Office of Trademark Examination Policy as described in the preceding subparagraph identifying the applications or other trademark documents in which he is identified as the attorney of record filed with the USPTO without his knowledge or consent;

j. As a condition of his probation, Respondent shall, prior to the termination of his probation, provide to the OED Director a written declaration, affidavit, or statement in compliance with 28 U.S.C. § 1746 signed by Respondent stating that he has enrolled in, virtually attended, and completed each of the eight modules comprising the USPTO's Trademark Basics Boot Camp (located on the USPTO website at <https://www.uspto.gov/about-us/events/trademark-basics-boot-camp>);

k. Respondent shall cooperate fully with the USPTO in any present or future inquiry into any third-party entities (e.g., foreign representatives or foreign associates) or person(s) with

whom Respondent worked, or was solicited to work, in connection with patent or trademark documents submitted to the USPTO;

l. The OED Director shall electronically publish the Final Order at the OED's electronic FOIA Reading Room, which is publicly accessible through the Office's website at: <https://foiadocuments.uspto.gov/oed/>;

m. The OED Director shall publish a notice in the *Official Gazette* that is materially consistent with the following:

Notice of Reprimand and Probation

This notice concerns Mr. Michael L. Bartholomew of Highland, Utah, who is an attorney authorized to practice before the United States Patent and Trademark Office ("USPTO" or "Office") in patent, trademark, and other non-patent matters (Registration No. 60,225). Mr. Bartholomew has been reprimanded and placed on probation for violating 37 C.F.R. §§ 11.101 (Competence); 11.103 (Diligence); 11.503(a)-(c) (Responsibilities regarding non-practitioner assistance); 11.804(c) (Misconduct – engage in conduct involving dishonesty, fraud, deceit or misrepresentation); and 11.804(d) (Misconduct – engage in conduct prejudicial to the administration of justice) of the USPTO Rules of Professional Conduct. The violations are predicated on Mr. Bartholomew's trademark practice, in which he inadequately monitored the acts and omissions of non-practitioner assistants for whom he had sponsored USPTO.gov accounts, resulting in the non-practitioner assistants violating the signature rules for trademark documents by entering Mr. Bartholomew's signature and attorney credentials on seventy-five trademark documents.

From October 2019 through January 2025, Mr. Bartholomew was the attorney of record in over 10,000 trademark documents filed with the USPTO using his USPTO.gov account. Mr. Bartholomew received many trademark referrals from numerous China and Hong-Kong companies, namely: Shenzhen Oneworld Technology Service Co., Ltd 深圳市一世界技术服务有限公司; Shenzhen Ma Shang Intellectual Property Co., Ltd 深圳马上知识产权有限公司; Libra 天秤座; Xiamen YISI Business Consulting Co., Ltd 厦门一思商务咨询有限公司; Intermark Patentes Y Marcas, S.L.P. Limited; Luo Hengcong 罗恒聪; Guangdong Litinso Intellectual Property Co., Ltd 广东利腾索知识产权有限公司; Shenzhen Arzou Enterprise Management Consulting Co., Ltd 深圳市阿尔祖企业管理咨询有限公司; Tallge (Guangzhou) Intellectual Property Co., Ltd 广州市泰尔格知识产权有限公司; and Shenzhen Haiwei International IP 深圳海威国际知识产权局, all of which were based in China or Hong Kong during the relevant time period. The customers of these referring companies were foreign-domiciled trademark applicants. As such, Mr. Bartholomew was hired to be the attorney of record for those customers (i.e., foreign domiciled trademark applicants seeking registration of their trademarks before the USPTO), as required by the U.S. Counsel Rule. *See* 37 C.F.R. § 2.11(a);

Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants, 84 Fed. Reg. 31498 (July 2, 2019).

In the course of his representation of these foreign-domiciled trademark applicants, Mr. Bartholomew (1) did not take reasonable steps to ensure that trademark documents had been signed in accordance with the USPTO trademark signature rules; (2) did not adequately supervise the activities (including the signing practices) of non-practitioner assistants for whom he had sponsored USPTO.gov accounts; (3) presented trademark documents to the USPTO that were improperly signed by non-practitioner assistants rather than Mr. Bartholomew, who was the named signatory on the forms, to be filed with the USPTO in violation of the USPTO trademark signature rules; and (4) did not adequately review, if reviewing at all, filing receipts of improperly signed trademark documents.

Mr. Bartholomew has not been previously disciplined by the USPTO, and he represents that he has never been the subject of professional discipline by any court or state bar. Mr. Bartholomew has expressed contrition and has engaged in the utmost cooperation with OED during its investigation by, among other things, participating in an interview, providing supplemental responses to requests for information, and taking action to improve his trademark practice.

The USPTO has published ample, readily available information for practitioners regarding what is competent practice before the Office in trademark matters. In particular, the USPTO maintains a webpage regarding important trademark information including specific links to relevant laws, rules, regulations, and rulemaking. (*Available at www.uspto.gov/trademarks*).

The USPTO publishes online and regularly updates the TMEP (*Available at tmepp.uspto.gov/RDMS/TMEP/current*). The TMEP is a guidance document that provides trademark practitioners, *inter alia*, with a reference work on the practices and procedures relative to prosecution of applications to register marks in the USPTO. For example, TMEP § 611.01 provides clear guidance on the USPTO's signature rules, including that (a) the person(s) identified as the signatory must personally sign the document (*e.g.*, a paralegal, legal assistant, or secretary may not sign or enter the name of an attorney or other authorized signatory), (b) a person may not delegate their authority to sign, and (c) no person may use document-signing software to enter or electronically generate someone else's signature.

The USPTO has published ample information about the U.S. Counsel Rule. *See, e.g., Requirement of U.S. Licensed Attorney for Foreign Trademark Applicants and Registrants*, 84 Fed. Reg. 31498 (Final Rule) (July 2, 2019); 37 C.F.R. § 2.11 (Requirement for representation); TMEP § 601. There is also ample, readily available information for practitioners regarding what is ethical practice before the Office in trademark matters. For example, the USPTO has a searchable OED FOIA webpage (*Available at <https://foiadocuments.uspto.gov/oed>*).

Therefore, practitioners who represent applicants, registrants, or others before the USPTO in trademark matters—including those who serve as U.S. counsel for foreign-domiciled clients—are reasonably expected to know (a) the applicable trademark prosecution rules, (b) the provisions of the USPTO Rules of Professional Conduct implicated by such representation, and (c) the potential disciplinary consequences when such provisions of the USPTO Rules of Professional Conduct are violated. The USPTO Director has issued numerous orders imposing discipline on trademark practitioners who violated the USPTO Rules of Professional Conduct based on not complying with USPTO trademark signature rules, not adequately supervising non-attorneys, not complying with USPTO.gov account agreements when sponsoring non-practitioner assistants in their trademark practice, and/or not fulfilling obligations under 37 C.F.R. § 11.18 to conduct an inquiry reasonable under the circumstances in support of factual assertions made in trademark documents presented to the USPTO, including:

In re Erik B. Jensen, Proceeding No. D2009-46 (Feb. 18, 2010 Final Order)
In re Allen A. Meyer, Proceeding No. D2010-41 (Sep. 7, 2011 Final Order)
In re Shia, Bang-er, Proceeding No. D2010-41 (April 22, 2015 Initial Decision)
In re Shia, Bang-er, Proceeding No. D2010-41 (Mar. 4, 2016 Final Order)
In re Shia, Bang-er, Proceeding No. D2010-41 (Aug. 1, 2016 Order on Reconsideration)
In re Matthew Swyers, Proceeding No. D2016-20 (Jan. 26, 2017 Final Order)
In re Reyner Meikle, Proceeding No. D2019-17 (Mar. 21, 2019 Final Order)
In re Travis Crabtree, Proceeding Nos. D2018-31 & -47 (Apr. 25, 2019 Final Order)
In re Heather Sapp, Proceeding No. D2019-31 (May 15, 2019 Final Order)
In re Deborah Sweeney, Proceeding No. D2019-33 (June 19, 2019 Final Order)
In re Anita Mar, Proceeding No. D2019-11 (Aug. 2, 2019 Final Order)
In re Renuka Rajan, Proceeding No. D2019-30 (Sep. 5, 2019 Final Order)
In re Thomas C. Caraco, Proceeding No. D2019-50 (Sep. 12, 2019 Final Order)
In re Lenise Williams, Proceeding No. D2019-23 (Sep. 20, 2019 Final Order)
In re Charles Caldwell II, Proceeding No. D2020-12 (Mar. 17, 2020 Final Order)
In re Jamie Bashtanyk, Proceeding No. D2020-09 (Apr. 17, 2020 Final Order)
In re Yiheng Lou, Proceeding No. D2021-04 (May 12, 2021 Final Order)
In re Andrei Mincov, Proceeding No. D2020-30 (Aug. 23, 2021 Final Order)
In re Devasena Reddy, Proceeding No. D2021-13 (Sep. 9, 2021 Final Order)
In re Bennett David, Proceeding No. D2021-08 (Sep. 24, 2021 Final Order)
In re Di Li, Proceeding No. D2021-16 (Oct. 7, 2021 Final Order)
In re Tony C. Hom, Proceeding No. D2021-10 (Dec. 17, 2021 Final Order)
In re Elizabeth Yang, Proceeding No. D2021-11 (Dec. 17, 2021 Final Order)
In re Elizabeth Pasquine, Proceeding No. D2019-39 (Aug. 13, 2021 Initial Decision)
In re Elizabeth Pasquine, Proceeding No. D2019-39 (Mar. 28, 2022 Final Order)
In re Yi Wan, Proceeding No. D2022-04 (Apr. 1, 2022 Final Order)
In re Jonathan Morton, Proceeding No. D2022-07 (Apr. 20, 2022 Final Order)
In re Kathy Hao, Proceeding No. D2021-14 (Apr. 27, 2022 Final Order)
In re Weibo Zhang, Proceeding No. D2022-16 (July 11, 2022 Final Order)
In re Daoyou Liu, Proceeding No. D2022-03 (Aug. 9, 2022 Final Order)
In re Zhihua Han, Proceeding No. D2022-23 (Jan. 6, 2023 Final Order)

In re Jingfeng Song, Proceeding No. D2023-10 (May 1, 2023 Final Order)
In re Kevin R. Gallagher, Proceeding No. D2023-28 (June 23, 2023 Final Order)
In re Puja Jabbour, Proceeding No. D2023-33 (Sep. 6, 2023 Final Order)
In re Jing Wang, Proceeding No. D2023-38 (Nov. 21, 2023 Final Order)
In re Yue Niu, Proceeding No. D2023-32 (Jan. 3, 2024 Final Order)
In re Grace Lee Huang, Proceeding No. D2023-37 (Jan. 8, 2024 Final Order)
In re Ryan A. Bethell, Proceeding No. D2019-42 (Nov. 20, 2023 Initial Decision)
In re Ryan A. Bethell, Proceeding No. D2019-42 (Jan. 27, 2024 Final Order)
In re Francis Koh, Proceeding No. D2024-07 (Feb. 7, 2024 Final Order)
In re Che-Yang Chen, Proceeding No. D2024-01 (Mar. 20, 2024 Final Order)
In re Julian A. Haffner, Proceeding No. D2023-35 (May 21, 2024 Final Order)
In re Harrison B. Oldham, Proceeding No. D2024-11 (May 29, 2024 Final Order)
In re Wayne Harper, Proceeding Nos. D2020-10 & D2024-15 (Aug. 13, 2024 Final Order)
In re Lan Yu, Proceeding No. D2024-24 (Aug. 20, 2024 Final Order)
In re Ruth K. Khalsa, Proceeding No. D2019-38 (Sep. 5, 2024 Final Order)
In re Weitao Chen, Proceeding No. D2024-21 (Sep. 11, 2024 Final Order)
In re Alexis Campbell, Proceeding No. D2019-41 (Oct. 10, 2024 Final Order)
In re Jie Luo, Proceeding No. D2024-02 (Oct. 25, 2024 Final Order)
In re Qinghe Liu, Proceeding No. D2023-39 (Nov. 21, 2024 Final Order)
In re Angus Ni, Proceeding No. D2024-20 (Dec. 19, 2024 Final Order)
In re Afamefuna Okeke, Proceeding No. D2024-18 (Jan. 6, 2025 Final Order)
In re Nyall S. Engfield, Proceeding No. D2025-12 (Mar. 10, 2025 Final Order)
In re Shan Zhu, Proceeding No. D2024-19 (Mar. 18, 2025 Final Order)
In re Phillip T. Horton, Proceeding No. D2025-15 (Mar. 20, 2025 Final Order)
In re Andrew S. Rapacke, Proceeding No. D2025-16 (Mar. 20, 2025 Final Order)
In re Hao Ni, Proceeding No. D2025-14 (Mar. 31, 2025 Final Order)
In re Curtis Ray Hussey, Proceeding No. D2025-19 (May 14, 2025 Final Order)
In re Xiaofang Zhong, Proceeding No. D2025-18 (May 21, 2025 Final Order)
In re Evelyn Ufomadu, Proceeding No. D2025-20 (June 25, 2025 Final Order)
In re Maria G. Worley, Proceeding No. D2025-11 (Aug. 14, 2025 Final Order)
In re Timothy Tiewei Wang, Proceeding No. D2025-21 (Aug. 22, 2025 Final Order)
In re Tamar Toledano, Proceeding No. D2025-07 (Sep. 3, 2025 Final Order)
In re Zhuojingwen Tian, Proceeding No. D2025-05 (Sep. 29, 2025 Initial Decision)
In re Bentley J. Olive, Proceeding No. D2026-03 (Nov. 20, 2025 Final Order)
In re Benjamin Alan Balser, Sr., Proceeding No. D2025-30 (Dec. 19, 2025 Final Order)
In re Kevin Patrick O'Keefe, Proceeding No. D2026-07 (Jan. 29, 2026 Final Order)

Trademark practitioners should be mindful that the USPTO trademark signature rule requiring the named signatory to enter his or her signature on a trademark document to be presented to the Office is a substantive rule, not a mere technical requirement. See *In re Stelcore Management Services, LLC*, Final Order for Sanctions (USPTO June 13, 2025). Therefore, a failure of a named signatory to enter their signature on a trademark document potentially adversely affects a trademark applicant's and trademark registrant's intellectual property rights as well as the integrity of the USPTO trademark registration process.

Practitioners who are engaged in practice before the USPTO in trademark matters are reasonably expected to know the USPTO rules regarding the use of their own USPTO.gov accounts and the rules regarding sponsorship of USPTO.gov accounts. It is critical to the integrity of the USPTO trademark registration process that practitioners pay close attention to the trademark documents that are being filed by non-practitioner assistants who assist the practitioner in his or her trademark practice. A practitioner is reasonably able to (a) determine whether trademark documents naming the practitioner as the attorney of record in a matter have been filed with the USPTO by searching the attorney's first name and last name on the USPTO's online trademark search system (currently located at <https://tmsearch.uspto.gov/search/searchinformation>) and (b) promptly inform in writing the USPTO of each trademark document filing that was made without his or her knowledge or consent.

This action is the result of a settlement agreement between Mr. Bartholomew and the OED Director pursuant to the provisions of 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26. Disciplinary decisions involving practitioners are posted for public reading at the Office of Enrollment and Discipline Reading Room accessible at: <https://foiadocuments.uspto.gov/oed/>.

n. Nothing in the Agreement or this Final Order shall prevent the Office from considering the record of this disciplinary proceeding, including the Final Order: (1) when addressing any further complaint or evidence of the same or similar misconduct concerning Respondent brought to the attention of the Office, and (2) in any future disciplinary proceeding against Respondent (A) as an aggravating factor to be taken into consideration in determining any discipline to be imposed, and/or (B) to rebut any statement or representation by or on Respondent's behalf;

o. Based on Respondent's agreement to do so, Respondent waives all rights to seek reconsideration of the Final Order under 37 C.F.R. § 11.56, waives the right to have the Final Order reviewed under 37 C.F.R. § 11.57, and waives the right otherwise to appeal or challenge the Final Order in any manner; and

p. The OED Director and Respondent shall each bear their own costs incurred to date and in carrying out the terms of this Final Order.

(signature page follows)

(signature page for Final Order (D2026-17))

**LOUIS
BOSTON**

Digitally signed by
LOUIS BOSTON
Date: 2026.03.19
08:59:00 -04'00'

Louis J. Boston Jr.
Associate General Counsel for General Law
United States Patent and Trademark Office

Date

on delegated authority by

John A. Squires
Under Secretary of Commerce for Intellectual Property and
Director of the United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing FINAL ORDER was sent, on this day, to the parties in the manner indicated below:

Via email to the OED Director at:

Lena Munasifi
Lena.munasifi@uspto.gov
[REDACTED]
Counsel for the OED Director

Via first-class certified mail, return receipt requested at:

Mr. Michael L. Bartholomew
Bartholomew Law PC
5842 W Timber Ridge Lane
Highland, UT 84003
Respondent

3/19/2026
Date


United States Patent and Trademark Office
Alexandria, Virginia 22313-1450